

NEWS

It's Not Illegal for California Police to Misuse Flock Data. San José Leaders Want to Change That

A new proposal would tighten rules around unauthorized searches, but the cameras aren't going anywhere, officials said.

Sep 24, 2026 Updated 3:54 pm PT

By Alina Ta



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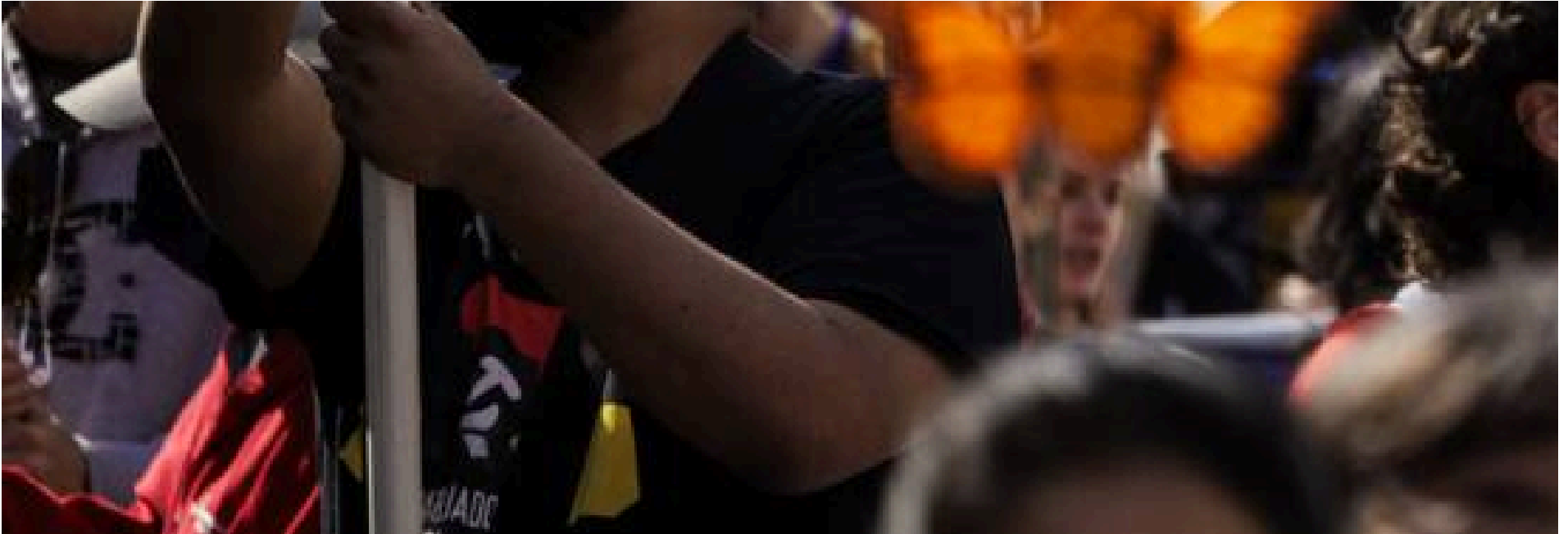
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Protesters march carrying a papier-mâché camera to protest the use of Flock security cameras at the Oakland Sin Fronteras May Day march in Oakland on May 1, 2026. San José officials called for more audits of law enforcement searches of the automated license plat

San José officials said they plan to tighten rules for accessing the city’s automatic license plate reader system after a police officer was fired for misusing the city’s [Flock](#) database to track a civilian who accused

A memo from Vice Mayor Pam Foley and Mayor Matt Mahan would petition the California state Legislature to find a way to add criminal penalties as one of the potential consequences for when an officer mis

“There ought to be more ways that we can hold an officer who misuses the information accountable than just firing him. But there is not that provision or that capability right now,” she said.



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San José Mayor Matt Mahan helps to install a Flock Safety brand automated license plate reader on April 23, 2024. Civil liberties groups are now suing the city and Mahan over the technology's uses. *(Joseph Geha/KQED)*

According to San José Police Chief Paul Joseph, an off-duty officer used a personal device to perform unauthorized license plate reader searches and locate a victim's vehicle. He then shared the location with the victim. The officer was immediately placed on leave and later terminated following a criminal investigation, Joseph said in an email. The case was submitted to the state for a decertification investigation.

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'Full-on Backlash' Against Data Centers Occurring as San

“When an officer violates the public’s trust this severely, my responsibility is to address it. But no criminal charges were filed against the officer.

In a statement to KQED, the Santa Clara County District Attorney’s Office

“Laws like California’s computer system hacking statute have been interpreted

In addition to addressing that gap, the proposal will strengthen audits of information. The annual reports will include records that flag officers for accessing license



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authority, and they cannot wear the San José badge,” the chief said. “This tech

ch of state criminal law.

no are not authorized to access a computer system from doing so,” the DA’s c

and number of audits with annual reports to city oversight committees.

ose, suspicious search activity and any other violations of the city’s policy.

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A Flock Safety worker holds up a new Automated License Plate Reader that was being installed in East San José on Tuesday, April 23, 2024. (Joseph Geha/KQED)

“It’s important that we show the community that what happened we take seriously, and we want to put as many stipulations in effect as we can not let these things happen again,” Foley said.

The memo also recommends strengthening the police department’s and the city’s policies to prohibit officers from accessing any law enforcement database, including Flock camera data, with personally owned

While Foley emphasized the goal of the memo, which will be released on

“We need this tool to help really solve serious crimes,” Foley said. “We ha

In a statement, SJPd said the new standards “will help maintain trust with

“They will also ensure that anyone who breaches the community’s trust w

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does not plan to change or eliminate its contract with Flock Safety, citing pul

g able to solve crimes as quickly as possible, and that’s with the use of this t

ement said.

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A Flock camera monitors the intersection at McKee and North White roads in San José on April 2, 2026. (Martin do Nascimento/KQED)

Advocates for civil liberties and immigrant protections, however, said the incident was proof that license-plate reading cameras and other surveillance tools are “not public safety.”

“It is a blatant violation of our community’s trust to learn that a sworn police officer abused our private ALPR data for their personal purposes on their personal phone for their personal contact to stalk and end a

“Mass surveillance goes beyond one company, one vendor, and one ‘bad actor,’” the statement said. “Mass warrantless surveillance from ALPRs makes our people vulnerable to who is in power to turn our data

KQED’s [Elize Manoukian](#) contributed to this report.

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